

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yanjiao Chen	Team: Team # 3	CCRB Case #: 201304897	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 05/31/2013 12:00 PM	Location of Incident: West 188th Street and St. Nicholas Avenue	Precinct: 34	18 Mo. SOL 11/30/2014	EO SOL 11/30/2014	
Date/Time CV Reported Mon, 06/03/2013 3:09 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 06/03/2013 3:09 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sherif Baksh	00449	933629	034 PCT
2. SGT Michael Mchugh	04363	925715	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jose Rosario	02128	934136	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Michael Mchugh	Abuse: Sgt. Michael Mchugh supervised the stop of the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.POM Sherif Baksh	Discourtesy: PO Sherif Baksh spoke rudely to § 87(2)(b)	
C.POM Sherif Baksh	Force: PO Sherif Baksh used physical force against § 87(2)(b)	

Case Summary

On June 3, 2013, § 87(2)(b) filed this complaint with the CCRB via walk-in. He filed a duplicate complaint with IAB via telephone on the same day, generating IAB Log No. 2013-23897.

On May 31, 2013, § 87(2)(b) was driving down St. Nicholas Avenue between 190th and 191st Street in Manhattan with his friend, § 87(2)(b). At around 12 p.m., PO Sherif Baksh, PO Jose Rosario, and Sgt. Michael McHugh of the 34th Precinct stopped them. The following allegations resulted from the incident.

Allegation A: Abuse of Authority – Sgt. Michael McHugh supervised the stop of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

Allegation B: Discourtesy – PO Sherif Baksh spoke rudely to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g).

Allegation C: Force – PO Sherif Baksh used physical force against § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) on the day of the incident. He is a Hispanic man, who is 5'11" tall, weighs 180 pounds, and has brown hair and brown eyes.

Statements to Medical Personnel

Ambulance Call Report

On May 31, 2013, § 87(2)(b) stated verbatim to the Emergency Medical Technician (enc. C-1) that "I was hit in the face and cut in the mouth."

§ 87(2)(b)
§ 87(2)(b)'s chief complaint to the physician at § 87(2)(b) on § 87(2)(b) (enc. C-2), was of "assaulted bruises to left side of the face and lower lip" acquired while resisting arrest.

CCRB Statement

§ 87(2)(b) came into the CCRB to file a walk-in complaint on June 3, 2013, § 87(2)(g). On the "Walk-in" form that all civilians are required to fill out, he checked his gender as "female". The investigator rescheduled § 87(2)(b) for an

interview on June 4, 2013, and his in-person statement from that day (enc. C-3 – C-9) is summarized below.

On May 31, 2013, at around 12 p.m., § 87(2)(b) was driving with his friend § 87(2)(b) in another friend's car. When asked during his interview, § 87(2)(b) stated that they had not been playing loud music and the vehicle did not smell of marijuana. He had turned onto St. Nicholas Avenue and was following all traffic rules when he saw an unmarked black Chevy Impala turn on its lights in his rearview mirror. § 87(2)(b) pulled over at West 188th Street, and three officers exited the black unmarked vehicle – PO Jose Rosario, Sgt. Michael McHugh, and PO Sherif Baksh, all of the 34th Precinct. PO Rosario was identified via the investigation. § 87(2)(b) had encountered Sgt. McHugh from a previous arrest, and he obtained PO Baksh's shield number and name from his nameplate during the incident.

§ 87(2)(b) had already rolled down the car windows before any of the officers approached. PO Rosario was the first to speak with § 87(2)(b) asking him for his license and registration. § 87(2)(b) handed the information over to PO Rosario and inquired as to why he was being stopped. PO Rosario responded that § 87(2)(b) had failed to signal while changing lanes. PO Rosario asked § 87(2)(b) to "step out of the car," but when § 87(2)(b) did not comply and kept on talking to PO Rosario, PO Baksh suddenly came over and yanked § 87(2)(b) out of the car by grabbing onto both of his arms. PO Baksh then pushed § 87(2)(b) onto the car, facing forward, and placed his hands on top of the hood. All of this was done over-aggressively and § 87(2)(b) kept telling PO Baksh "Yo, chill." § 87(2)(b)'s voice was not loud and he was not making any physical movements.

PO Baksh frisked § 87(2)(b) from his shoulders to his feet, searched him, and found marijuana in the left pants pocket. He then handcuffed § 87(2)(b) grabbed him by the elbows, and shoved him aggressively towards the Chevy Impala. § 87(2)(b) was trying to explain to PO Baksh that he had an injured left foot which made him unable to walk very quickly. PO Baksh did not listen, and kept saying "Shut the fuck up!" § 87(2)(b) became a little agitated and started talking to PO Baksh in a loud voice, saying "Yo, stop harassing me."

When they were near the unmarked vehicle § 87(2)(b) could not recall how far it was from his vehicle), PO Baksh suddenly grabbed § 87(2)(b)'s shirt with his left hand, and punched his mouth region more than five times, injuring § 87(2)(b)'s top lip. § 87(2)(b) had ducked his head to try and avoid the punches, but did not make any other physical movements as he was already handcuffed.

PO Baksh then commanded § 87(2)(b) to "get the fuck in the car." § 87(2)(b) sat in the back with Sgt. McHugh and § 87(2)(b) who was also handcuffed. His vehicle was brought to the 34th Precinct stationhouse by an unidentified officer. During transport to the stationhouse, Sgt. McHugh accused § 87(2)(b) of "being high," and stated that he would be charged with a DUI, and his license confiscated. § 87(2)(b) was soon released after arriving at the 34th Precinct stationhouse, and PO Baksh accompanied § 87(2)(b) in an ambulance to § 87(2)(b) at about § 87(2)(b).

§ 87(2)(b) stated in his interview that he had not been smoking at the time of the incident, and although he does smoke marijuana occasionally, he does not smoke and drive.

Witness: § 87(2)(b)

- The investigator did not obtain § 87(2)(b)'s pedigree information as she failed to appear for her appointments at the CCRB.
- § 87(2)(b) identified § 87(2)(b) as a witness of the incident. The two are longtime friends.

Phone Statement

On June 17, 2013, § 87(2)(b) provided a phone statement (enc. D-1) which is summarized below.

On May 31, 2013, at around 12 p.m., § 87(2)(b) was just coming out of a salon at 188th Street and St. Nicholas Avenue, when she saw § 87(2)(b) leaning against an RMP, with his back against the car, facing PO Sherif Baksh of the 34th Precinct, whose name was determined via the investigation. § 87(2)(b) was already handcuffed, not making any physical movements, and merely asking why he was being arrested. He was not using any profanity. PO Baksh then grabbed § 87(2)(b) by the neck, punched him in the face three times, and kicked him once in the stomach. § 87(2)(b) doubled over from the kick, after which PO Baksh pushed him into a police vehicle, and Sgt. Michael McHugh of the 34th Precinct, whose name was determined via the investigation, pulled § 87(2)(b) in from the other side. Before closing the patrol car door, PO Baksh kicked § 87(2)(b) one more time.

§ 87(2)(b) did not respond to this physical force as he was already handcuffed. During this interaction, PO Baksh said "shut the fuck up" to § 87(2)(b). There was a huge crowd of around 15-20 people gathered around the scene. The bystanders were yelling at the officers and taking video.

Attempts to Contact Civilians

The investigator reached § 87(2)(b) the victim of this incident, on June 18, 2013, and scheduled him to provide an in-person statement at the CCRB on June 24, 2013. § 87(2)(b) failed to appear for his appointment and gave the investigator no prior notification of his intended absence. The investigator tried contacting § 87(2)(b) five times between June 25, and July 5, 2013, leaving voice messages each time. PO Baksh's memo books revealed § 87(2)(b)'s home address, and on July 16, 2013, the investigator mailed § 87(2)(b) a missed appointment letter, however it was returned to the CCRB by the United States Postal Service as "unable to forward." On September 12, 2013, the investigator conducted a search on the New York City Department of Correction Inmate Lookup Service, yielding negative results for § 87(2)(b). On September 13, 2013, a Lexis Nexis database search yielded three potential addresses for § 87(2)(b) and the investigator mailed two please call letters to all three addresses on September 17 and September 24, 2013, of which only one has been returned to the CCRB by the United States Postal Service.

The investigator reached § 87(2)(b) on June 17, 2013, and scheduled her for an appointment at the CCRB for June 20, 2013. § 87(2)(b) missed her appointment and the investigator lacked her address so a missed appointment letter could not be mailed. The investigator called § 87(2)(b) three times between June 21, 2013, and June 28, 2013, leaving voice messages each time.

The investigator conducted field work on July 1, 2013, at and around the incident location, however no witnesses were discovered.

NYPD Statements:

Subject Officer: PO SHERIF BAKSH

- *PO Baksh was § 87(2)(b) old at the time of the incident. He is an Asian man, who is 5'8" tall, weighs 185 pounds, and has black hair and brown eyes.*
- *On the day of the incident, PO Baksh was assigned to the SNEU team with Sgt. McHugh and PO Jose Rosario. He worked between the hours of 9 a.m. and 5:35 p.m. in uniform.*

Arrest Report

This incident generated arrest #§ 87(2)(b) and #§ 87(2)(b) (enc. I-1 – I-6) for § 87(2)(b) PO Baksh wrote the report and stated verbatim in the arrest details section for both reports that § 87(2)(b) was “§ 87(2)(a) 160.50

[illegible]

In the report for arrest #§ 87(2)(b) force was noted as being used for the purposes of “restraint, control, and removal” of the civilian, however it was not noted for arrest #§ 87(2)(b)

Memo Book

PO Baksh's memo book entries pertaining to this incident (enc. F-1 – F-4) state verbatim that “at 12:45 p.m., observed grey 07 Chevy Impala § 87(2)(b) travel south on St. Nicholas at W 190st. At 12:50 p.m., W 188 and St. Nicholas Ave. Vehicle failed to signal change from left lane to right lane between W 190th and 189th Steet. Upon approaching vehicle there was a strong odor of burning marijuana emanating from vehicle. 2 zip lock bags in public view in center console observed by Sgt. McHugh and I. Driver § 87(2)(b) stated “I smoked a blunt 20 min ago.” Sila driver § 87(2)(b) had 7 bags of marijuana in shorts front left pants pocket. Defendant § 87(2)(b) did refuse orders to keep his hands on car during pat down and kept pushing off of vehicle as I was conducting a pat down. Upon putting cuffs on § 87(2)(b) Defendant refused to walk to RMP and kept pulling and pushing his body away. Upon placing § 87(2)(b) in rear of RMP § 87(2)(b) defendant pulled his knees to his chest and attempted to kick A/O, defendant kept screaming and cursing during arrest. Passenger § 87(2)(b) § 87(2)(b) Summons issued § 87(2)(b) for § 87(2)(b). 1330 Transport § 87(2)(b) § 87(2)(b) to 28th for IDTU Testing with PO Rosario RMP 878. Defendant refused to urinate into container and instead urinated into toilet. Defendant gave insufficient sample of urine. At 9:45 p.m., went to § 87(2)(b) with EMS and prisoner § 87(2)(b)

CCRB Statement

PO Baksh was interviewed at the CCRB on July 12, 2013 (enc. F-5 – F-7) and his statement is summarized below.

On May 31, 2013, at around 12 p.m. PO Baksh observed a car fail to signal while changing lanes on St. Nicholas Avenue between 191st and 190th Street in Manhattan. PO Rosario and Sgt. McHugh also noticed the violation, and the three officers conferred with each other about it. The officers stopped the civilian vehicle between 189th and 188th Street. PO Baksh, PO Rosario, and Sgt. McHugh were all approaching the civilian vehicle at the same time when PO Baksh requested the driver, § 87(2)(b) to roll down the windows. After the windows were rolled down, a strong odor of marijuana emanated from the car.

PO Baksh and PO Rosario approached the driver's side, while Sgt. McHugh approached the passenger's side. PO Baksh asked § 87(2)(b) for his license and registration, and as § 87(2)(b) went to retrieve it, PO Baksh and Sgt. McHugh noticed two bags of marijuana in plain view in the coffee cup holder of the center console. PO Baksh then ordered § 87(2)(b) to step out of the car, but did not use profanity in making this request, and did not say "get the fuck out of the car." Once outside, PO Baksh turned § 87(2)(b) around to face the car, and placed his

hands on top of the car. He inquired about the odor of marijuana, to which § 87(2)(b) stated that he had just smoked a blunt 10 minutes ago. § 87(2)(b) also acted as if under the influence of drugs, and his eyes were bloodshot and watery.

While PO Baksh was trying to frisk § 87(2)(b) however the latter kept lifting his right arm off of the car and twisting his upper body. PO Baksh never entered § 87(2)(b)'s pockets, and did not recover anything from the frisk. § 87(2)(b) was agitated and accused the officers of stopping him for no reason, although PO Baksh was explaining the traffic violation to him. PO Baksh then handcuffed § 87(2)(b) and walked him to the patrol car, which was about 10 feet away. While walking, § 87(2)(b) who is a lot taller, tried to pull away from PO Baksh and turn around. He then suddenly lunged forward with his head down as if to head butt PO Baksh. In response, PO Baksh hit § 87(2)(b) who was 2-3 feet away, once in the face with a closed fist, in a jab-type motion, to put more distance between them. § 87(2)(b) did not react physically or verbally to being hit, nor did his demeanor change. He was still agitated and swearing at PO Baksh.

PO Baksh was finally able to get § 87(2)(b) to the patrol car, however the latter resisted getting into the vehicle by pushing against PO Baksh with his shoulders. Besides this instance, § 87(2)(b) made no other physical contact with PO Baksh during the entire incident. PO Baksh did not say to § 87(2)(b) "get the fuck into the car." There was a crowd gathered around the scene at this time. Finally, § 87(2)(b) complied and sat inside the patrol car but lifted his knees as if to kick PO Baksh, so PO Baksh hit § 87(2)(b) on the upper body once to prevent the latter from delivering any kicks. § 87(2)(b) did not react verbally or physically to this physical force either. Sgt. McHugh brought § 87(2)(b) to the patrol car, and all three officers transported both civilians to the 34th Precinct stationhouse. PO Baksh did not observe any injuries on § 87(2)(b) nor did he hear § 87(2)(b) complain about any injuries. At the stationhouse, § 87(2)(b) complained about a leg injury he had sustained a couple of years ago.

Witness Officer: SGT. MICHAEL MCHUGH

- *Sgt. McHugh was § 87(2)(b) old at the time of the incident. He is a white man who is 6'3" tall weighs 240 pounds, and has red hair and blue eyes.*
- *On the day of the incident, Sgt. McHugh was assigned as the Robbery Auto Sergeant with PO Baksh and PO Rosario in unmarked vehicle #§ 87(2)(b). He worked between the hours of 9 a.m. and 5:57 p.m., and was in uniform.*

Memo Book

Sgt. McHugh's memo book entries pertaining to this incident (enc. E-1 – E-3) state verbatim that "at 12:45 p.m., car stop S/B St. Nicholas Ave @ W 188 St. veh 2007 Grey Chevy Impala NY Reg § 87(2)(b) traveling S/B on St. Nicholas Ave in left lane changed to right lane between W 190 St. and W189 St. without signaling. At 12:50 p.m., 2 under in regards by PO Baksh. Def #1 (operator) § 87(2)(b) Arrest #§ 87(2)(b) for § 87(2)(a) 160.50 § 87(2)(b) – def was very combative was asked to step out of car because two bags MJ were observed in center console. Def repeatedly was pushing himself off of vehicle and attempting to turn around. Def began to flail his arms in an effort not be handcuffed. Def also refused to get in RMP Def #2 § 87(2)(b) § 87(2)(b) for § 87(2)(b) Summons § 87(2)(b). Def § 87(2)(b) stated on way to stationhouse 'I just smoked a 20 and was going to get something to eat because I have the munchies. I was going to get a skirt steak for \$8.' At 1 p.m., arrived at 37 PCT for A.P. At 1:10 p.m. Def § 87(2)(b) out to 28 PCT for IDYU. At 9 p.m., Def § 87(2)(b) makes allegation that PO Baksh beat him up, Capt. Morales ntfd and conducted interview at 34 PCT. PO Bonney IAB Notified Log #2013-23543."

CCRB Statement

Sgt. McHugh was interviewed at the CCRB on July 12, 2013 (enc. E-4 – E-6). § 87(2)(g)

On May 31, 2013, at around 12 p.m., as Sgt. McHugh was approaching the passenger side of the civilian vehicle, he smelled an odor of marijuana. Once at the vehicle, he commanded the driver, § 87(2)(b) to roll down the windows, which made the odor of marijuana stronger. PO Rosario asked § 87(2)(b) for his license and registration and when § 87(2)(b) opened the middle console to obtain this information, PO Rosario and Sgt. McHugh observed two bags of marijuana. It was at this point that § 87(2)(b) was determined to be under arrest however none of the officers made any verbal comment about it. Sgt. McHugh has previously arrested § 87(2)(b) for possession, and has recently arrested § 87(2)(b) again on § 87(2)(b) for selling marijuana.

PO Rosario and PO Baksh then commanded § 87(2)(b) to exit the vehicle, while Sgt. McHugh dealt with the civilian passenger, § 87(2)(b). § 87(2)(b) initially refused to comply, but finally exited the vehicle and was turned around against the vehicle with his hands placed on the hood. Sgt. McHugh never heard PO Rosario or PO Baksh say “get the fuck out of the car.” § 87(2)(b) began acting very combative, flailing his arms, and trying to turn around, which prevented PO Baksh and PO Rosario from frisking him. To gain compliance, PO Baksh hit § 87(2)(b) once in the face, with a closed fist. § 87(2)(b) did not respond verbally to this physical force, but stopped his physical movements momentarily which allowed the officers to handcuff him. Sgt. McHugh could not recall which officer actually placed the handcuffs on § 87(2)(b).

PO Rosario and PO Baksh then walked § 87(2)(b) to the patrol car without any problems, although the latter kept saying “I’m not going, I’m not going.” At the patrol car, § 87(2)(b) refused to get into the vehicle, so Sgt. McHugh placed § 87(2)(b) at the civilian vehicle’s end bumper, walked over to the side of the patrol car opposite of § 87(2)(b) and pulled § 87(2)(b) inside by the handcuffs. Sgt. McHugh did not hear PO Rosario or PO Baksh say “get the fuck into the car.” He then called for additional units to transport § 87(2)(b) but could not remember anything about these officers. During transport to the stationhouse, § 87(2)(b) stated to Sgt. McHugh that he had just smoked a joint and had been going to get a skirt steak. Sgt. McHugh observed a scratch to § 87(2)(b)’s face but did not know the cause of this injury. PO Baksh drove the civilian vehicle to the 34th Precinct stationhouse where it was vouchered and searched. It had not been searched at the scene. § 87(2)(b) was ultimately brought to the hospital.

Witness Officer: PO JOSE ROSARIO

- PO Rosario was § 87(2)(b) old at the time of the incident. He is a Hispanic man, who is 5’7” tall, weighs 170 pounds, and has brown hair and brown eyes.
- On the date of the incident, PO Rosario was assigned to the Burglary Auto with Sgt. McHugh and PO Baksh. He worked in uniform, between the hours of 9 a.m. and 5:35 p.m., in unmarked vehicle #§ 87(2)(b).

Memo Book

PO Rosario's memo book entries pertaining to this incident (enc. G-1 – G-3) state verbatim that "at 12:50 p.m., car stop Chevy Impala gray, in regards to VTL infaction, fail to signal while changing lane on the corner of W 190 st and St. Nicholas Ave, car was stopped at W 188st and St. Nicholas Ave after further investigation. Heavy odor of marijuana inside vehicle and deft § 87(2)(b) SILA Deft had marijuana in left pants pocket. Arrest by PO Baksh. Deft § 87(2)(b) did resist arrest and refused to get into the RMP § 87(2)(b) Deft was yelling, screaming."

CCRB Statement

PO Rosario was interviewed at the CCRB on July 18, 2013 (enc. G-4 – G-6). § 87(2)(g)

On May 31, 2013, at around 12 p.m., at the intersection of 188th Street and St. Nicholas Avenue in Manhattan, PO Rosario, PO Baksh, and Sgt. McHugh stopped § 87(2)(b)'s vehicle for a traffic violation. As § 87(2)(b) reached in the center console to obtain his license and registration, PO Rosario saw clear zip-lock bags of marijuana inside the coffee holders and stated to PO Baksh "92", which meant arrest. § 87(2)(b) complied with PO Baksh's command to exit the vehicle and stood facing the car with his hands on the hood, but he kept taking his hands off the hood and turning his upper body around to face PO Baksh. § 87(2)(b)'s eyes were bloodshot, his speech was slurred, every other word of his was "fuck," and he informed the officers that he had just smoked a blunt. PO Baksh handcuffed and searched § 87(2)(b) finding more marijuana in his pockets. At this time, PO Rosario was searching the immediate lunge-able areas of the driver's seat for other narcotics.

PO Baksh then brought § 87(2)(b) to the patrol car, which was about a car's length away from the civilian vehicle. Although § 87(2)(b) began to scream and yell while being escorted to the patrol car, he did not put up any resistance. PO Rosario did not see PO Baksh hit § 87(2)(b) nor did he hear PO Baksh say any profanity to § 87(2)(b) at this time or during the entire incident. Once at the RMP, § 87(2)(b) initially refused to get in, but eventually complied. PO Rosario did not see PO Baksh kick or hit § 87(2)(b)'s upper body, nor did he see § 87(2)(b) make any physical movements as if to kick PO Baksh.

Medical Records

Ambulance Call Report

The Ambulance Call Report (ACR) generated for this incident on May 31, 2013 (enc. H-1 – H-2), states verbatim that § 87(2)(b) male sitting inside cell alert and oriented x3. Complains of getting hit in the face and cut in the mouth while resisting arrest. Patient has minor bruising with minor swelling to right side of face and small laceration with no bleeding to inside of mouth on right side. Patient has no loose teeth and airway is clear, negative swelling inside mouth. Patient denies loss of consciousness, dizziness, or blurry vision. Patient is...unremarkable."

§ 87(2)(b)

The physician who attended to § 87(2)(b) on § 87(2)(b) (enc. H-3 – H-15), found § 87(2)(b) to have "mild ecchymosis over right zygomatic bone,...and 1 cm hematoma to inner mucosa of right upper lip." § 87(2)(b) had no pain or tenderness to any other part of his body.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- On September 25, 2013, [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York, which is past the 90-day filing deadline (enc. L-11).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (enc. A-4).

Subject Officer CCRB History

- Sgt. McHugh has been a member of the service for 13 years and there is one substantiated CCRB allegation against him (enc. A-1):
 - In CCRB Case No. 200301006, the allegation involved failing to obtain care for a dependent. The Board recommended Charges, and the NYPD imposed Instructions.
- PO Sherif Baksh has been a member of the service for nine years and there are no substantiated CCRB allegations against him (enc. A-2 – A-3).

Conclusion

Identification of Subject Officer

Sgt. McHugh and PO Baksh confirmed their interactions with [§ 87(2)(b)]

Allegations Not Pleaded

[§ 87(2)(b)] was determined to be under arrest the minute Sgt. McHugh, PO Baksh, and PO Rosario observed bags of marijuana in plain view in the center console. [§ 87(2)(g)]

[REDACTED]

[REDACTED]

[§ 87(2)(g)]

[REDACTED]

[REDACTED]

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – Sgt. Michael McHugh supervised the stop of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants

§ 87(2)(b) alleged that Sgt. McHugh stopped his vehicle without justification. Sgt. McHugh recalled that § 87(2)(b) had failed to signal while changing lanes, giving rise to the vehicle stop. Both PO Baksh and PO Rosario corroborated this statement, and § 87(2)(b) himself recounted how the officers had given him the same reason during the incident. § 87(2)(b) was ultimately not summonsed for the occasion, however all three officers had the initial reason for the stop listed consistently in their respective memo books, and PO Baksh recorded it in § 87(2)(b)'s arrest report.

§ 87(2)(g)

Allegation B: Discourtesy – PO Sherif Baksh spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Baksh had said multiple derivations of the term “fuck” to him during the incident.

PO Baksh denied ever using any profanity during his interaction with § 87(2)(b) specifically, never saying “Get the fuck out of the car,” or “Shut the fuck up,” or “Get the fuck into the car.” PO Rosario and Sgt. McHugh both deny ever hearing PO Baksh saying any profanity, or saying any profanity themselves.

§ 87(2)(g)

Allegation C: Force – PO Sherif Baksh used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Baksh grabbed him by the shirt and punched him five times in the mouth. It is undisputed that PO Baksh used physical force against § 87(2)(b) § 87(2)(g)

§ 87(2)(b) recalled that as he was being escorted to the patrol car, PO Baksh was acting overly-aggressive. § 87(2)(b) was not moving at the pace PO Baksh wanted, and was trying to explain that he had a bad leg which causes him to walk slowly. PO Baksh however, was not listening, so § 87(2)(b) was raising his voice. All of a sudden, PO Baksh punched § 87(2)(b) five times, who tried to avoid the blows by ducking his head, but did not respond physically in any other manner as he was already in handcuffs.

PO Baksh recalled that as he was escorting § 87(2)(b) to the patrol car, § 87(2)(b) was resisting and pulling away, when suddenly, he made a lunging motion at PO Baksh, with his head forward as if to head-butt PO Baksh. To defend himself PO Baksh hit § 87(2)(b)'s face once, with a closed fist, in a jab-like motion. Sgt. McHugh, PO Baksh, and PO Rosario all consistently described § 87(2)(b) stating to them during the incident that he had just smoked a blunt, with the latter two officers specifying that § 87(2)(b) showed physical signs of being under the influence of marijuana. A crowd had gathered around the situation before the physical force took place, which § 87(2)(b) described the members of as yelling at the officers and videotaping the incident.

When § 87(2)(b) attended § 87(2)(b) on § 87(2)(b), the physician noted that he had mild bruising on his right cheek bone, and a one centimeter bruise to his upper right lip.

NYPD Patrol Guide Procedure 203-11, states that officers can use minimum force necessary to effect an arrest of a violent or resisting individual (enc. AA-1 – AA-2).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigator: _____ Yanjiao Chen _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature	Print	Date
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